

**SUBSTITUTE FOR
HOUSE BILL NO. 5033**

A bill to amend 1937 PA 306, entitled

"An act to promote the safety, welfare, and educational interests of the people of this state by regulating the construction, reconstruction, and remodeling of, and the installation of certain security devices at, certain public or private school buildings or additions to those buildings and by regulating the construction, reconstruction, and remodeling of, and the installation of certain security devices at, buildings leased or acquired for school purposes; to define the class of buildings affected by this act; to prescribe the powers and duties of certain state agencies and officials; to prescribe penalties for the violation of this act; and to repeal acts and parts of acts,"

by amending section 5a (MCL 388.855a), as amended by 2020 PA 45.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 5a. (1) Except as provided in this section, this act does
2 not apply to 1-story school buildings, ~~to~~ 1-story additions to



1 school buildings, or ~~to the construction, reconstruction,~~ or
 2 remodeling of a school building if the total cost of construction,
 3 reconstruction, or remodeling is less than ~~\$15,000.00.~~ **\$500,000.00.**

4 (2) Section ~~1(1)(a)~~ **1(1)** applies to the construction of all
 5 school buildings and additions to school buildings regardless of
 6 the number of stories of the buildings or additions if the total
 7 cost of construction exceeds ~~\$15,000.00.~~ **\$500,000.00.**

8 ~~(3) Section 1(1)(d) applies to the construction of all school~~
 9 ~~buildings and additions to school buildings of 1 or more stories~~
 10 ~~regardless of the cost of construction.~~

11 **(3)** ~~(4)~~ This act applies to the reconstruction of a school
 12 building destroyed or partially destroyed by fire, windstorm, or
 13 other catastrophe if more than 50% of the entire building is
 14 destroyed. The bureau of fire services created in section 1b of the
 15 fire prevention code, 1941 PA 207, MCL 29.1b, acting jointly with
 16 the superintendent of public instruction, may require that the
 17 damaged portion or the remaining portion of the building, or both,
 18 be remodeled or reconstructed in accordance with this act.

19 **(4)** ~~(5)~~ This act applies to the remodeling of existing school
 20 buildings and other buildings to be used for school purposes.

21 **(5)** ~~(6)~~ An existing building or part of an existing building,
 22 regardless of the number of stories or the cost to the school
 23 district of the building, that has not been used as a school
 24 building ~~shall~~ **must** not be used as a school building unless ~~it~~ **the**
 25 **use of the existing building or part of the existing building as a**
 26 **school building** is approved by the superintendent of public
 27 instruction and the bureau of fire services.

28 **(6)** ~~(7)~~ If the construction, reconstruction, or remodeling of
 29 a school building costs less than ~~\$15,000.00,~~ **\$500,000.00,** it is



1 not necessary to employ a registered architect or engineer, but the
2 plans for the building must be submitted to the bureau of fire
3 services and to the superintendent of public instruction or the
4 superintendent's authorized agent for criticism, suggestions, and
5 approval.

6 **(7) ~~(8)~~**—A temporary door locking device or system, as
7 described in section 1d, may be installed in any school building or
8 addition to a school building, regardless of the number of stories
9 of the building or addition, or as a component in the construction,
10 reconstruction, or remodeling of a school building or addition to a
11 school building regardless of the costs of that construction,
12 reconstruction, or remodeling.

13 **(8)** Beginning January 1, 2027, and each year thereafter, the
14 department shall adjust the monetary thresholds under subsections
15 (1), (2), and (6) by an amount determined by the state treasurer to
16 reflect the cumulative annual percentage change in the Consumer
17 Price Index. As used in this subsection "Consumer Price Index"
18 means the annual average Consumer Price Index for All Urban
19 Consumers (CPI-U), all items in U.S. city average, reported by the
20 Bureau of Labor Statistics of the United States Department of Labor
21 or its successor or, if the index is discontinued, an equivalent
22 index reported by a federal authority. If no such index is
23 reported, Consumer Price Index means the substitute index chosen by
24 the state treasurer.

